

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No. 156049/2024
KEVIN WASHINGTON,

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, PATRICK COLLINS, and
JOHN DOES # 1-4, being the fictitious names of New York
City Police Officers whose names are unknown to Plaintiff,

Defendants.

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Plaintiff KEVIN WASHINGTON, through his counsel, for his complaint, states the
following upon information and belief:

PARTIES

1. Plaintiff Kevin Washington is an individual
2. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a
municipal corporation organized under the laws of the State of New York, in and as the
City of New York.
3. Defendant PATRICK COLLINS is an individual whose residence is
unknown to Plaintiff and who is a New York City Police Department officer.
4. Defendant JOHN DOES # 1-4 are New York City Police Department
officers whose names and addresses are presently unknown to Plaintiff.
5. The individual Defendants (that is, the individual police officers) are being
sued both in their individual capacity and in their official capacity as police officers
employed by Defendant CITY.

**PREREQUISITES TO SUIT AGAINST THE CITY OF NEW YORK FOR
STATE-LAW CAUSES OF ACTION**

6. Plaintiff has served a timely notice of claim(s) upon Defendant CITY within 90 days after Plaintiff was falsely arrested and detained and otherwise wronged, as described in this complaint.

7. At least 30 days have elapsed since the service of such notice of claim(s), and the adjustment or payment has been neglected or refused.

FACTS

8. On July 2, 2023, at about 3:30 A.M., Plaintiff was lawfully on the sidewalk in front of the address of 866 Sixth Avenue, New York, NY.

9. On July 2, 2023, Defendant PATRICK COLLINS (Shield # 1168) and JOHN DOEs # 1-4 were New York City Police Department officers (all collectively will be hereinafter referred to as “Defendant Police Officers.”)

10. On July 2, 2023, while Plaintiff, who is black, was stopped for no reason by Defendant Police Officers.

11. A reasonable person or police officer should have known that Plaintiff had committed no crime, violation, or infraction.

12. Defendant Police Officers had no warrant to arrest Plaintiff.

13. Defendant Police Officers otherwise had no other lawful reasons to arrest Plaintiff.

14. Notwithstanding, Defendant Police Officers arrested and handcuffed Plaintiff.

15. Before being handcuffed, Plaintiff attempted to inform Defendant Police

Officers that he had committed no crime and did not want to be handcuffed and go to jail, but Plaintiff went peacefully and submitted without resistance to the false arrest.

16. Upon arrival at the jail, the police subjected Plaintiff to a humiliating search and confiscated all his money and personal belongings.

17. Plaintiff was then incarcerated in a cell with criminals.

18. Eventually, Plaintiff was released from jail after being in police custody/jail.

19. After being arrested, the following criminal proceedings were brought against Claimant: People of the State of New York v. Kevin Washington (Criminal Court of the City of New York, County of New York, docket # CR-019794-23NY and DAT serial # 010-00169) (hereinafter “**Criminal Action # 1**”); People of the State of New York v. Kevin Washington (Criminal Court of the City of New York, County of New York, docket # CR-019795-23NY and DAT serial # 014-00686) (hereinafter “**Criminal Action # 2**”); and People of the State of New York v. Kevin Washington (Criminal Court of the City of New York, County of New York, docket # CR-019826-23NY and DAT serial # 013-00273) (hereinafter “**Criminal Action # 3**”). The charges against Claimant in the above-mentioned criminal actions had no merit. On January 11, 2024, all charges against Claimant were dismissed for **Criminal Action # 1**; all charges against Claimant were dismissed for **Criminal Action # 2** on November 6, 2023; and all charges against Claimant were dismissed for **Criminal Action # 2** on January 11, 2024. Because of the dismissal of the above-mentioned criminal actions, liability for malicious prosecution arose against the City of New York and the above-mentioned New York City Police Officers in both the individual and official capacities as New York City Police officers.

FIRST CAUSE OF ACTION**(Violation of 42 U.S.C § 1983)**

20. Plaintiff repeats and re-alleges every allegation in this complaint.
21. Defendant Police Officers intended to confine and completely confined Plaintiff.
22. Plaintiff was cognizant of the confinement.
23. Plaintiff voiced objections to the confinement to which he did not consent.
24. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff in any way.
25. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiff and in violating Plaintiff's rights and discriminating against him and profiling him because of his race.
26. Defendant Police Officers violated Plaintiff's civil liberties and rights under the United States Constitution, including, but not limited to, the Bill of Rights, the Fourth Amendment, the Sixth Amendment, and the Fourteenth Amendment.
27. Pursuant to 42 U.S.C. § 1983, Plaintiff is entitled to damages from Defendant Police Officers for violating Plaintiff's constitutionally protected civil rights.
28. Defendant CITY has maintained a system of review of police conduct that is so untimely and cursory as to be ineffective and has the policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.
29. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use

of force and falsely arresting individuals, such as Plaintiff, based upon, among other things, racial motives, would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiff and in falsely arresting Plaintiff and others in the future.

30. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiff is also entitled to damages from Defendant CITY for violations of Plaintiff's constitutionally protected civil rights.

31. Finally, all Defendants are liable for paying Plaintiff an award of counsel fees in an amount to be determined by this Court, pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION

(False arrest/imprisonment)

32. Plaintiff repeats and re-alleges every allegation in this complaint.

33. Defendant Police Officers intended to confine and completely confined Plaintiff.

34. Plaintiff was cognizant of the confinement.

35. Plaintiff voiced objections to the confinement to which he did not consent.

36. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff.

37. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiff.

38. Defendant CITY is, therefore, vicariously liable for falsely arresting and

imprisoning Plaintiff.

39. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiff.

THIRD CAUSE OF ACTION

(Battery)

40. Plaintiff repeats and re-alleges every allegation in this complaint.

41. Defendant Police Officers' acts were intentional.

42. Defendant Police Officers' conduct resulted in harmful, offensive, and nonconsensual bodily contact with Plaintiff, amounting to the civil tort of battery.

43. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiff.

44. Defendant CITY, therefore, is vicariously liable for the battery that Defendant police officers inflicted upon Plaintiff.

45. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION

(Negligence)

46. Plaintiff repeats and re-alleges every allegation in this complaint.

47. Defendant Police Officers had a duty to protect and not arrest citizens who do not commit crimes.

48. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiff.

49. The actions of Defendant Police Officers caused Plaintiff to suffer damages.

50. Consequently, Defendant Police Officers are liable for negligence.

51. Defendant Police Officers acted within the scope of their duties as police officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiff.

52. Defendant CITY, therefore, is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

53. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION

(Negligent Hiring and Retention)

54. Plaintiff repeats and re-alleges every allegation in this complaint.

55. Defendant CITY had a duty to hire and retain competent police officers.

56. Defendant CITY knew or should have known that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.

57. Defendant CITY breached its duty to hire and retain competent police officers.

58. Due to the CITY's breach, Plaintiff suffered damages.

59. Thus, Defendant CITY is liable for the negligent hiring and retention of Defendant police officers.

SIXTH CAUSE OF ACTION**(Malicious Prosecution)**

60. Plaintiff repeats and re-alleges every allegation in this complaint.

61. Defendants brought a prior criminal proceeding against Plaintiff.

62. After being arrested, the following criminal proceedings were brought against Claimant: People of the State of New York v. Kevin Washington (Criminal Court of the City of New York, County of New York, docket # CR-019794-23NY and DAT serial # 010-00169) (hereinafter “**Criminal Action # 1**”); People of the State of New York v. Kevin Washington (Criminal Court of the City of New York, County of New York, docket # CR-019795-23NY and DAT serial # 014-00686) (hereinafter “**Criminal Action # 2**”); and People of the State of New York v. Kevin Washington (Criminal Court of the City of New York, County of New York, docket # CR-019826-23NY and DAT serial # 013-00273) (hereinafter “**Criminal Action # 3**”). The charges against Claimant in the above-mentioned criminal actions had no merit. On January 11, 2024, all charges against Claimant were dismissed for **Criminal Action # 1**; all charges against Claimant were dismissed for **Criminal Action # 2** on November 6, 2023; and all charges against Claimant were dismissed for **Criminal Action # 2** on January 11, 2024.

63. Defendant Police Officers had malice in prosecuting Plaintiff in the prior criminal proceedings.

64. Defendant CITY is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as New York City Police Department officers.

65. Thus, all Defendants are liable for malicious prosecution.

WHEREFORE, Plaintiff demands judgment as follows:

- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$2 million and, pursuant to 42 U.S.C. § 1988, attorney's fees against all Defendants;
- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$2 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the amount of \$2 million against all Defendants;
- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$2 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$2 million against Defendant CITY;
- (f) on the Sixth Cause of Action (malicious prosecution), actual and punitive damages in the amount of \$2 million; and
- (g) costs, disbursements, interest, and such other relief that is appropriate.

Dated: Manhasset, New York
July 8, 2024

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 
Peter M. Agulnick

Attorney for Plaintiff

KEVIN WASHINGTON

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(Our File # **426-003**)